

Mr. Graham spoke next. He reflected on his own experiences as a co-executor, which had helped him select co-executors for his own estate.

You have to use your judgment. You have to have understanding and compassion. I was an executor of a [close friend's] estate of a substantial amount of money. I had discretionary power.... Every [decision] was not necessarily dictated....

When the daughter [age twenty-three] was ready to marry, ... I knew her father would have wanted her to have a nice wedding ... so we gave her ... the kind of wedding he would have given her.

After she married and started a family, I was still not quite sure of her maturity. So I distributed only enough money for her to buy a nice home.... Later I was convinced that she was able to take care of herself... so I approved the distribution of what was left in the trust.

The daughter received the balance of her inheritance just before her thirtieth birthday, when Mr. Graham judged her to be capable of handling her inheritance. She had demonstrated her maturity in her stable marriage, role as a mother, and career of her own.

When selecting the executors of his own estate, Mr. Graham chose an attorney who was an old friend. He discovered that “it’s better for the children to be mad at the arbitrator than with each other.”

Mr. Ward, yet another affluent respondent, had also served as a co-executor. He chose two attorneys as executors of his multimillion-dollar estate rather than his sons or daughters. One of the attorneys was his niece; the other, a partner in one of the top law firms in the country. Mr. Ward explained his choices:

I chose younger attorneys because I felt that they would have a better understanding of the needs of the heirs of my estate. Both have the greatest integrity and understanding, ... and the two of them know each other professionally.